



GrayMechanical

Subcontractor has no exclusive right or option to perform any such work. GRAY Mechanical shall have no liability in the event that it does not hire Subcontractor for a particular project. It is further agreed and understood that in the event Subcontractor defaults under any Work Order issued by GRAY Mechanical or under the terms of this Agreement, such default shall be considered an Event of Default (as defined herein) under all Work Orders issued by GRAY Mechanical to Subcontractor or on all projects Subcontractor is performing under this Master Subcontract Agreement, and GRAY Mechanical shall be entitled to offset against any sums due and owing to Subcontractor under any Work Order or any project, any and all damages incurred by GRAY Mechanical as a result of Subcontractor's default, in addition to GRAY Mechanical's other rights and remedies hereunder, at law or in equity.

GRAY Mechanical may enter into a contract for work with a third party for a specific project hereinafter called "Customer", and if Customer is not the Owner or lessee of the property on which the contract work is to be performed, Customer shall have entered into a "Prime Contract" with the Owner or lessee of the property with regard to the project to which they relate, hereinafter called "Owner", all of which contract(s) as may further be identified in the Work Order, Prime Contract, Subcontract, Purchase Order and the general, supplementary and special conditions, plans, specifications, drawings, addenda, or any other documents incorporated therein, (hereinafter "Contract Documents") are made a part of this Agreement by reference, insofar as applicable to that portion of the work required herein or by the Work Order to be performed by Subcontractor. Subcontractor acknowledges that it has requested and read the Contract Documents and all plans and specifications regarding the Subcontract Work, is familiar with them, and agrees to comply with and perform all provisions thereof in any way applicable to Subcontractor. GRAY Mechanical hereby gives notice that it objects to and expressly rejects the inclusion of any additional or different terms proposed by Subcontractor. The Subcontractor's proposal, even if attached to a Work Order, is for informational purposes only, is not a part of the Subcontract, and is superseded by the Contract Documents. Conflicts between or among the Contract Documents relating to scope shall be resolved to require the more stringent requirements, higher quality, or greater quantity of work. Subcontractor and its subcontractors and suppliers (regardless of tier) shall be bound to GRAY Mechanical in the same manner and to the same extent as GRAY Mechanical is bound by the Contract Documents. In addition to any other rights and remedies it may have, GRAY Mechanical shall have the rights and remedies with respect to Subcontractor that Owner or Customer has with respect to GRAY Mechanical.

1. Scope of Work

Subcontractor shall furnish and pay for all supervision, materials, labor, services, tools and equipment and perform all of the work necessary or incidentally required for the completion in a timely and good and workmanlike manner of that part of the work covered by the Contract Documents described in the Work Order or as otherwise directed by GRAY Mechanical (hereinafter the "Subcontract Work"). Subcontractor agrees to perform the Subcontract Work in accordance with and be bound by the terms and provisions of the Contract Documents and assumes and agrees to perform all of obligations and responsibilities of GRAY Mechanical under said Contract Documents in connection with the Subcontract Work.

2. Schedule

Time is of the Essence. Notice to proceed from GRAY Mechanical to Subcontractor may be a written or verbal notice. Subcontractor shall timely, efficiently and promptly prepare and deliver shop drawings and submittals, order, procure and purchase materials, equipment, services,



MASTER SUBCONTRACT AGREEMENT

Master Subcontract Agreement No.: SUB-2026-0015

This Master Subcontract Agreement (this "Agreement" or "Master Subcontract Agreement") is made and entered by and between Gray Mechanical Contractors, LLC ("GRAY Mechanical") 15534 W. Hardy Rd., Ste 100, Houston, Texas 77060 and Nvidia, Inc. ("Subcontractor") nag, Texas as of this 11th day of April, 2026.

Subcontractor and GRAY Mechanical, in consideration of the promises and covenants contained herein, agree as follows:

GRAY Mechanical may, from time to time, desire to retain Subcontractor to perform work of the nature generally performed by Subcontractor, on various projects, under the same general terms and conditions as those set out herein, and Subcontractor is desirous of performing such work for GRAY Mechanical on a repeat basis, pursuant to an expedited contracting procedure.

In the event GRAY Mechanical elects, in its sole discretion, to retain Subcontractor to perform such work on a specific project, GRAY Mechanical shall issue to Subcontractor a Work Order describing the Project, Owner, Prime Contractor (if other than GRAY Mechanical) scope of the Subcontract Work (as herein defined), schedule and Contract Price, in the form attached hereto as Exhibit "A". Subcontractor's execution and return of this Agreement, such Work Order, or Subcontractor's commencement of the Subcontract Work, whichever occurs first, shall constitute Subcontractor's acceptance of the Work Order and the terms and conditions set out therein, subject to the terms and conditions of this Master Subcontract Agreement, which shall apply thereto. Should Subcontractor desire to perform on a specific project, such performance shall be governed by this Master Subcontract Agreement and the Contract Documents (as hereinafter defined), the terms of which are agreed to be incorporated into each Work Order, with or without reference. In the event GRAY Mechanical fails to issue a Work Order, any work performed by Subcontractor at the written or oral request of GRAY Mechanical shall nonetheless be governed by this Agreement, regardless of the date of the performance. This Agreement, together with any individual Work Order, along with Contract Documents (as defined herein) shall constitute the entire agreement for a project between the parties hereto.

This Master Subcontract Agreement shall remain in full force and effect as to, and shall govern any and all work performed by Subcontractor pursuant to any Work Order issued by Contractor for a period of two (2) years from the date of this Agreement (the "Master Subcontract Term"), unless this Agreement is terminated by GRAY Mechanical prior to the expiration of the Master Subcontract Term, and the Master Subcontract Term shall thereafter be automatically extended on a month-to-month basis, absent thirty (30) days written notice of termination by GRAY Mechanical. Any and all Subcontract Work commenced by Subcontractor during the Master Subcontract Term shall be governed by this Master Subcontract Agreement notwithstanding the expiration of the Master Subcontract Term. Nothing contained in this paragraph, however, shall be construed as a limitation of Contractor's termination rights under this Master Subcontract Agreement.

It is agreed and understood that GRAY Mechanical may utilize others to perform work of the nature described herein, that GRAY Mechanical has made no representations or promises with respect to Subcontractor's performance of all such work for GRAY Mechanical, and that